

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 25-02

NIELSEN & BAINBRIDGE, LLC v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982), EVERGREEN
MARINE CORPORATION (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED,
ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD., EVERGREEN
MARINE (SINGAPORE) PTE. LTD., AND YANG MING MARINE TRANSPORT
CORPORATION

THIRD JOINT MOTION TO EXTEND DEADLINES

Complainant Nielsen & Bainbridge, LLC (“NBG” or “Complainant”) and Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Ltd., Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively, “Evergreen”), and Yang Ming Marine Transport Corporation (“Yang Ming” and, with Evergreen, the “Respondents”) (NBG, together with Respondents, the “Parties”), by their respective undersigned counsel, and pursuant to 46 C.F.R. Sections 502.69 and 502.12, hereby file this third Joint Motion to Extend Deadlines (“Motion”) and in support thereof state that good cause for the requested extension exists, as follows:

I. The Current Schedule

1. On May 15, 2026, the Presiding Officer entered a Scheduling Order with the following deadlines relevant to this Motion:

EVENT	CURRENT DEADLINE
July 20, 2026	Complete depositions of fact witnesses
July 29, 2026	Disclosure of initial expert reports, if any
August 3, 2026	Last day to serve interrogatories, requests for admission, and

	RFPs
August 20, 2026	Disclosure of rebuttal expert reports, if any
September 1, 2026	Complete expert depositions
September 1, 2026	Close of discovery
September 29, 2026	Complainant's initial brief, proposed findings of fact, appendix
October 27, 2026	Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
November 10, 2026	Complainant's reply and responses to proposed findings of fact

II. Good Cause Exists to Extend the Current Deadlines

A. The Parties' Discovery Efforts and Challenges

2. The Parties have worked diligently and cooperatively in order to meet the Scheduling Order's July 20, 2026, deadline to review discovery and complete depositions of fact witnesses. Despite those joint efforts, it has become apparent to the Parties that the scale of document production, the number of depositions requested to be taken in this case, and the present interests of the Parties in ensuring witness cooperation and adequate third-party evidence is such that, as a practical matter, there simply are not enough days remaining within the current deadlines for the Parties to complete depositions and other discovery.

3. On June 15, 2024, each Respondent identified four potential Complainant witnesses they intend to depose in this matter. On June 22, 2026, Complainant identified a corporate designee and on July 26, 2026, Complainant identified an initial list of ten current or former Yang Ming employees and five current or former Evergreen employees whom NBG seeks to depose. Complainant has been coordinating with former employees of NBG and the NBG plan administrator to confirm availability of witnesses requested by Evergreen and Yang Ming and has provided responses on potential witnesses for third parties identified by Evergreen and Yang Ming, including CH Robinson and Kuehne Nagel.

4. The Parties have endeavored to work within the current schedule and met and conferred on July 9, 2026, to discuss current progress of outreach to witnesses and feasibility of

timing. Complainant is similarly continuing to use its best efforts to move the deposition scheduling process forward by continuing to reach out to former employees who are no longer within Complainant's control.

5. The Parties are continuing to work diligently to finalize scheduled dates for depositions with deponents and are coordinating a joint schedule that currently contemplates twenty Party employee and former employee depositions, plus the depositions of the Parties' corporate representatives, experts, and any depositions from key non-party witnesses from third-party logistics providers such as CH Robinson and Kuehne & Nagel that may be necessary. Many of these depositions also involve former employees of the Parties and non-U.S. individuals currently located abroad, which will require efforts through the Hague Convention on Service Abroad. Although the undersigned counsel is actively coordinating with those former employees and individuals to streamline the scheduling and taking of these depositions, some may require subpoenas and the opportunity to respond to such subpoenas. In addition, third-party witnesses will require further coordination and service of subpoenas as well. The summer vacation schedules also necessarily further complicate planning party and non-party depositions.

6. In addition, the Parties are continuing to review produced documents to assess the adequacy and sufficiency of the Parties' respective productions and prepare for fact depositions. To date, Complainant made four rolling productions totaling approximately 66,699 documents to Evergreen and four rolling productions totaling approximately 74,570 documents to Yang Ming, and Respondents produced a total of approximately 1.4 million documents to Complainant: 1,287,784 from Evergreen and 144,171 from Yang Ming.¹

B. Good Cause Exists to Extend the Current Deadlines

¹ It is important to note that "documents" in the context of an ESI production of emails is not the same as pages, as each document often consists of a string of email communications. The productions in this case involve hundreds of thousands of pages of documents to review, which the parties have been undertaking since producing their respective document productions.

7. The Parties remain respectful of the deadlines set forth in the April 10, 2026, Scheduling Order, and to date have worked together diligently and collaboratively to satisfy its terms. However, the complexity and the size of the responsive documentation, and additional time required to coordinate scheduling of witnesses and assess the scope of depositions and discovery, have made it clear to the Parties that even with all their best efforts, they will not be able to complete fact depositions and requisite document review within the present deadlines. Consequently, the Parties would not be able to adequately take depositions based upon a full factual record and further would not be able to present their respective claims and defenses adequately in their respective briefs in any eventual trial in this action.

8. The Parties are aware of the prior Order of this court and the Chief Administrative Law Judge Erin M. Wirth's Order in *Way Interglobal Network LLC v. Shenzheng SCM Limited*, FMC Dkt. No. 22-28, Dk. No. 18, denying a request for 120 additional days and instead granting a 45-day extension. In making this Motion, the Parties have limited their request to the most reasonable amount of time in which they believe they can feasibly complete fact depositions and conduct discovery in this large, complex litigation, with the understanding that they will also continue to work to stipulate to facts, limit depositions, and expeditiously resolve discovery disputes and produce documents promptly to the extent possible.

9. The Parties will endeavor to prevent any further requests for additional time, but limited extension requests may become necessary. The Parties will work to limit such extension requests, including by working to facilitate consent for email service of subpoenas and provision of contact information, where available.

10. Rule 102(a) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of

subpart L of this part, may be granted upon a showing of good cause.”

11. As shown above, a higher volume of documents by many magnitudes is involved in this matter than the 20,000 pages cited by the parties in *One Banana North America Corp. v HapagLloyd AG et al.*, FMC Dkt. No. 22-03, in which the Presiding Officer granted an approximate 75-day extension from the originally ordered production and deposition deadlines. Instead, this case is much more similar to that in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Docket No. 23-02, where, as mentioned, over 30 depositions were taken. Given the significant number of custodians in the present case, it is possible that the number of depositions conducted in this case will approximate those which were taken in the *BBBY v. OOCL* proceeding. If so, both Parties are intent on avoiding any wasteful actions and will work to streamline all such developments to their fullest ability.

III. Conclusion

12. The Parties respectfully submit that an extension of the deadline to complete depositions of fact witnesses in the Presiding Officer’s May 15, 2026 Scheduling Order is necessary in order to allow the Parties a fair opportunity to review produced documents, depose each other’s respective fact witnesses, and assess any additional discovery. The Parties will endeavor to avoid seeking additional extensions of time and, to the extent motions are needed, will seek to raise them as soon as the need appears and, where possible, file them jointly.

13. The Parties therefore jointly request the following amended schedule, which (accounting for weekends) moves 60 days from the deadline of the May 15, 2026, Scheduling Order to complete depositions of fact witnesses and deadlines following:

EVENT	CURRENT DEADLINE
September 18, 2026	Complete depositions of fact witnesses
September 28, 2026	Disclosure of initial expert reports, if any
October 2, 2026	Last day to serve interrogatories, requests for admission, and RFPs
October 19, 2026	Disclosure of rebuttal expert reports, if any

November 2, 2026	Complete expert depositions
November 2, 2026	Close of discovery
November 30, 2026	Complainant's initial brief, proposed findings of fact, appendix
December 28, 2026	Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
January 11, 2027	Complainant's reply and responses to proposed findings of fact

14. Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainant and counsel for Respondents have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the area of disagreement. The Parties each agree to the relief requested in this Motion.

15. WHEREFORE, the Parties jointly pray their Joint Motion to Extend Deadlines be granted.

Dated: July 13, 2026

Respectfully submitted,

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